Shanti Prasad And Ors. vs Mahabir Singh And Ors. on 19 March, 1957

Equivalent citations: AIR1957ALL402, AIR 1957 ALLAHABAD 402, 1957 ALL. L. J. 431 ILR (1957) 1 ALL 374, ILR (1957) 1 ALL 374

Author: Raghubar Dayal

Bench: Raghubar Dayal

JUDGMENT

Srivastava, J.

1. This application in revision has been referred to a Full Bench in order to secure an authoritative decision on the question whether when determining the valuation of a suit for possession of land, for purposes of jurisdiction it is necessary to take into account the value of garden and building which stand on the land.

2. The facts so far as they are necessary for our present purpose are not in dispute. Chaudhary Baldep Singh was the owner of the properties mentioned in lists 'A' & 'B' of the plaint. The property in list 'A' consists of 13 bighas 6 biswas pokhta of zamindari land, while the property in list 'B' consists of a house. Chaudhary Baldeo Singh died in 1901 leaving a widow, Srimati Parbati. She transferred the land and the house in dispute to the predecessor of the defendants. After her death, the plaintiff Chaudhary Mahabir Singh filed a suit for possession over the land and the house on the ground that he was the nearest reversioner of Chaudhary Baldeo Singh and the transfer made by Srimati Parbati in favour of the defendant's predecessor being without consideration and without legal necessity was not binding upon him. He filed the suit in the Court of the Munsif whose pecuniary jurisdiction extended to Rs. 5,000. According to him the value of the land and the house taken together was less than Rs. 5,000/- and the suit was therefore entertainable by the Munsif.

3. The defendants contested the suit and pleaded inter alia that the suit had been undervalued and, if properly valued, could not have been filed in the Court of the Munsif. They said that they had spent a considerable amount in constructing a well, houses and a garden on the land mentioned in list 'A', and had also improved the house mentioned in list 'B'. If the value of the buildings and the garden which existed on the land in list 'A' at the time of the suit was taken into consideration, the value of that property alone would be found to be more than Rs. 10,000-. The suit was therefore not cognizable by the Munsif.

4. It was common ground between the parties that the value of the house mentioned in list 'B' along with the site was Rs. 3,621-14-0 and the value of the land mentioned in list 'A' calculated at thirty times of its land revenue was Rs. 945. At the time when this land was sold there were no buildings or garden upon it. It was further not seriously disputed that the defendants had after purchasing the land from Srimati Parbati, spent about Rs. 10,000 in making constructions and planting a garden on it.

5. The question of jurisdiction was consi-dered by the learned Munsif as a preliminary issue. The plaintiff contended that he claimed only the land and the house which had originally been sold by Srimati Parbati to the defendants' predecessor. He did not claim any interest in the buildings which had been constructed by the defendants or in the garden which they had planted. The properties which he claimed were admittedly worth less than Rs. 5,000. As no relief had been claimed in respect of the buildings or the garden he was not bound to include their value in the valuation of the suit.

The suit had, therefore, been properly valued and was triable by the Munsif. The defendants, on the other hand, contended that the building and the garden being there on the land their value could not be ignored. The relief claimed by the plaintiff involved or affected them alsof because if the plaintiffs suit was decreed, the defendants would have to part with them.

They also contended that in any case in view of Clause (e) of Rule 3 of the U. P. Suits Valuation Rules, 1942, at least for purposes of jurisdiction, the market value of the buildings and the garden situated on the land was to be added to the value of the land for determining its value. Had the plaintiff properly valued the suit the value for purposes of jurisdiction would have exceeded Rs. 5,000. The suit was therefore not triable by the Munsif.

6. The defendants' contention found favour with the learned Munsif and he directed the plaint to be returned for presentation to proper Court. The plaintiff went up in appeal to the Civil Judge who preferred the contention of the plaintiff. He reversed the decision of the learned Munsif and remanded the case to him for trial on merits. Defendants have come up in revision and question the correctness of the view taken by the learned Civil Judge.

7. When the case came up before a learned single judge of this court, a preliminary objection was raised on behalf of the plaintiff that no case having been decided an application in revision did not lie. The contention was not found acceptable in view of two Full Bench decisions in Rani Iqbal Rai v. Telesary Kuari, reported in 1930 All LJ 1233: (AIR 1930 All 713) (A) and Mata Prasad v. Ram Adhar Pandey reported in A.I.R. 1952 All 535 (FB) (B). The objection was not reiterated before us.

8. A suit has to be valued for two purposes: (1) for payment of court fee, and (2) for determining the pecuniary jurisdiction of the court in which it is to be filed. The valuation for purposes of court fee has to be made according to the provisions of the Court Fees Act. The valuation for purposes of jurisdiction has to be made under the Suits Valuation Act. In many cases the two valuations are likely to be identical, but that is by no means necessary. If the law so provides it is possible that the value of a suit for purposes of court fee may be different from its value for purposes of jurisdiction.

9. The main relief claimed in the present suit being for possession over land and a house, for purposes of court fee the suit was governed by para (V) of section 7 of the Court Fees Act, and court fee had to be paid according to the value of the subject matter. The subject-matter was obviously the property over which the plain-tiff claimed possession, i.e., the house mentioned in list 'B' and the land mentioned in list 'A' with-out the constructions made and the garden planted by the defendants. For purposes of Court fee, therefore the land was to be valued under sub-para (1) of para (V) of Section 7 of the Court-Fees Act and the house mentioned in list 'B' was to be valued under sub-para (ii) of that para. As the plaintiff was not claiming the constructions built or the garden planted by the defendants on the land in list 'A' they could not be considered to be the subject-matter of the suit, and the plaintiff was therefore not bound to include their value in the valuation of the suit for the purpose of payment of Court-fee.

10. The valuation of the suit for purpose of jurisdiction had, however, to be made on a different principle. Under section 4 of the Suits Valuation Act as in force in U. P. (leaving out the words unnecessary for our purpose);

> "Suits mentioned in para (v) of Section 7 of the Court-fees Act as in force for the time being in the Uttar Pradesh, shall be valued for purposes of jurisdiction at the market-value of the property involved in or affected by or the title to which is affected by the relief sought, and such value shall in the case of land, be deemed to be the value as determinate in accordance with the rules framed under Section 3".

11. The rules framed under Section 3 of the Suits Valuation Act by our State are known as the Uttar Pradesh Suits Valuation Rules, 1942. The rule relevant for our purposes is Rule 3 (e) and it provides :

> "In suits for the possession of land the value of land for purposes of jurisdiction shall be determined as follows :
>
> (e) Where there are also buildings or a garden on the land the aggregate of the value of the land as determined in accordance with these rules plus the market-value of such buildings or garden situated thereon."

It is contended for the defendants that while valuing the suit for purposes of jurisdiction, in view of the clear words of Section 4 of the Suits Valuation Act, the plaintiff was bound to take into account the value of the buildings and the garden which stood on the land over which he claimed possession because the building and the land were undoubtedly involved in or affected by the relief which he sought. It is urged in the alternative that even if it be deemed that the buildings and the garden were not involved in or affected by the relief sought because the plaintiff claimed possession only over the land, in view of Clause (e) of Rule 3 of the U. P. Suits Valuation Rules, 1942 the plaintiff should have added the market value of the buildings and the garden which stood on the land to the value of the bare land in order properly to value the land itself.

12. The reply of the learned counsel for the plantiff to the first contention is that the plaintiff was claiming possession over the land only and was not claiming any relief in respect of the buiMings or garden that stood upon it The building and the garden could not therefore be said to be involved in or affected by the relief sought. Their value could not consequently be taken into account while valuing the suit for purposes of jurisdiction under section 4 of the Suits Valuation Act. He sought support for this contention from the cases of Kulsumun Nisan v. Khushnudi Begam, reported in 1953 All LJ 702: (AIR 1954 All 188) (C) and Abdul Ghani v. Vishunath, reported in 1957 All LJ 105 : (AIR 1957 All 337) (D).

12a. Learned Counsel's reply to the alternative contention of the learned counsel for the defendants is two-fold. He urges in the first place that Clause (e) of Rule 3 of the U. P. Suits Valuation Rules, 1942 was intended to apply only to those cases in which possession over land containing a building or a garden was claimed along with the building or a garden and not to cases in which possession was being claimed in respect of land alone. His second contention is that if Clause (e) of Rule 3 is interpret- ed in the way contended for by the plaintiff it must be held to be ultra vires because in that case it would come into conflict with the provisions of the Court Fees Act,

13. It is ture that the plaintiff has not claimed any relief in respect of the buildings constructed or the garden planted by the defendants on the land in list 'A'. He has claimed possession over the land alone as it was sold by Srimati Parbati. If, however, the suit of the plaintiff succeeds and he is found entitled to the relief he has claimed the defendants must either remove the buildings and do away with the garden in, question or leave them as they are to be taken by the plaintiff along with the land. In the circumstances we are of opinion that these buildings and garden must he held to be affected by the relief sought within the meaning of the term as used in Section 4 of the Suits Valuation Act.

14. The case of Kulsum Nisan v. Khushnudi Begum (C) referred to above is really of no help to the plaintiff on the point. In that case, the plaintiff had claimed possession over a piece of land and had also wanted the unauthorised constructions made' by the defendants on a portion of that land to be demolished. The relief was valued at Rs. 6,000/-. The defendants pleaded that the suit had been under-valued and should have been valued at Rs. 60,000 keeping in view the value of the buildings sought to be demolished. It was held by Brij Mohal Lall, J., with reference to Section 7(v) of the Court Fees Act that as in that ease possession had been sought over the land alone and not over the buildings Court fee could not be demanded on the price of the buildings and the buildings could not be considered to be the subject matter of the suit. If we may say so with respect, the view taken was quite justified so far as court fee was concerned. The question of valuing the suit for purposes of jurisdiction was not before the learned Judge at all. Whether the suit was valued at Rs. 6,000 or Rs. 60,000, in either case it was triable by the Civil Judge in whose court it had been filed.

15. There are observations in the case of Abdul Ghani v. Vishunath (D), which do lend support to the contention of the learned counsel lor the plaintiff. The plaintiff in that case had claimed possession over a piece of land after demolition of a construction made thereon by the defendants. For purposes of jurisdiction as well as court fee he had valued the land according to its market price and had not included in the value of the constructions standing upon the land. An objection was raised

about the correctness of the valuation and the sufficiency of the court fee paid. The Munsif held that the value of the constructions sought to be demolished was not be taken into consideration in determining the valuation of the suit for purposes of jurisdiction and court fee, and in revision the learned Judges upheld the view of the Munsif. They based their decision on the considerate that as the plaintiff had not claimed possession over the constructions they could be removed by the defendants at any time they liked. The plaintiff was therefore not bound to include in the valuation of the suit the price of the constructions standing on the and which he claimed. The attention of the learned Judges was apparently not drawn to the provisions of Section 4 of the Suits Valuation Act as amended by our State or to Rule 3 (e) of the U. P. Suits Valuation Rules, 1942. In a case like the one with which they were dealing, valuation for the purpose of court fee was to be made on one basis while valuation for the purpose of jurisdiction was to be made on an entirely different basis. The view taken by the learned Judges is no doubt correct so far as valution for purposes of court fee is concerned, but with respect, it is not possible to uphold it so far as it relates to valuation for purposes of jurisdiction.

16. The alternative contention of the learned counsel for the defendants also appears to be well founded. Even if the suit, so far as it was a suit for possession over the land mentioned in list 'A' be deemed to be a suit for possession of land alone without involving or affecting the buildings or the garden standing upon it, in view of Clause (e) of Rule 3 of the U. P. Suits Valuation Rules 1942 the market value of the buildings and the garden standing on the land was bound to be added to the value of the land in order to determine the value of the land itself. There appears to be nothing in Clause (e) of Rule 3 to limit its application to suits where possession over the land is claimed along with the buildings or gardens standing upon it and to exclude from its application suits in which possession is claimed over land alone. The clause has been enacted to provide for the valuation of land and clearly lays down that in case buildings or garden stand on the land their value must be added to the value of the land determined according to the other clauses of the rule for the purpose of determining the value of the land itself.

17. It is also not easy to appreciate the contention that Clause (e) of Rule 3 of the U. P. Suits Valuation Rules, 1942 is ultra vires. Section 3 of the Suits Valuation Act authorises the State Government to make rules among other things for determining the value of land for purposes of jurisdiction in suits mentioned in para (v) of section 7 of the Court Fees Act. Para (v) covers suits for possession of lands as well as buildings and gardens. The State Government could therefore frame rules as to how the value of land in a suit for possession of land was to be determined for purposes of jurisdiction. There appears to be nothing which could debar the State Government from providing that if buildings or gardens stand upon the land over which possession is sought, their value should be included while determining the value of the land itself. That the valuation of the land for purposes of jurisdiction will be different from the valuation of the land for purposes of court fee will not invalidate the rule.

The proviso to section 5 clearly contemplates that the value of land for the purpose of jurisdiction may be different from the value of the land for the purpose of court fees. The only limitation which is laid down is that the value for the purpose of jurisdiction should not be less than the value for the purpose of court fee. For purposes of court fee it may not be necessary to include the value of

building or garden stand-ing on the land in cases where possession over land is claimed without the building or garden. But it appears to have been open to the State Government while framing rules in exercise of the powers conferred by section 3 to provide that while determining the value of land for the purpose of jurisdiction in a suit for posses-sion of land the value of the buildings or gardens standing upon it should be taken into account even though possession is not being claimed over the buildings or gardens along with the land. The contention that Rule 3 is invalid thus appears to bo entirely without force.

18. We are therefore of opinion that the view taken by the learned Munsif in the case was preferable to that taken by the learned Civil Judge. While valuing his relief for possession over the land in list 'A' for purposes of jurisdiction the plaintiff should have added to the value of the land the market value of the buildings and garden that stood thereon. If the suit of the plaintiff had been properly valued, it would have fallen outside the pecuniary jurisdiction of the Munsif. The learned Munsif was, therefore, justified in ordering the plaint to be returned for presentation to proper court.

19. The application in revision is, therefore, allowed with costs. The order of the civil Judge is set aside and that of the learned Munsif restored.